DATAVISION

VISUAL DATA CREATES VALUE

DataVision s.r.o.

GENERAL TERMS AND CONDITIONS

for the Supply of Products and Services

as at January 1, 2026

These Terms and Conditions for the Supply of Products, Software and Services (the "**Terms**") govern the supply of products, software and services by **DataVision s.r.o.**, with its registered office at Slinková 589/2, 153 00 Prague 5, Czech Republic, Company ID No. 27142663, registered in the Commercial Register kept by the Municipal Court in Prague, file No. C 99493 ("**DataVision**" or the "**Supplier**"), to its business customers ("**Customer**").

For the purposes of these Terms, DataVision may perform supplies either directly or through any of its branch offices or other establishments, including its Italian branch operating under the name **DataVision Italy**, with registered office at **Galleria Sernesi 9, 39100 Bolzano, Italy**, VAT No. and Tax Code **03328060219**, and operating office at **Viale Sarca 336, edificio sedi T08, 20126 Milan, Italy**.

1. Scope and Application

1.1 These Terms apply to all quotations, proposals, order confirmations, statements of work, subscription orders, deliveries, licences, subscriptions, projects, services and other commercial arrangements under which DataVision supplies any products, software or services to the Customer.

1.2 These Terms form an integral part of each quotation, offer, order confirmation, statement of work, order form and contract issued or accepted by DataVision, unless expressly agreed otherwise in writing.

1.3 If the Customer refers in its purchase order, acceptance or other communication to its own standard terms and conditions, and such standard terms conflict with these Terms, the contract shall nevertheless be concluded to the extent otherwise agreed, and the conflicting standard terms shall not apply. All non-conflicting provisions of these Terms and of the Customer's standard terms shall remain in effect to the extent compatible with the agreed contractual documentation and applicable law.

1.4 Any specific commercial, technical or legal terms expressly stated in DataVision's quotation, order confirmation, statement of work, order form or other contractual document shall prevail over these Terms and over any conflicting standard terms of the Customer.

1.5 These Terms apply exclusively to business-to-business relationships. They do not apply to consumer contracts.

1.6 These Terms apply unless expressly replaced or supplemented by:
(a)written contract signed by both parties;
(b) a quotation, order confirmation, statement of work, order form or similar commercial document issued or accepted by DataVision;
(c) product-specific terms issued by DataVision for specific platforms or services; or
(d) specific schedules, annexes, service descriptions, licence terms, support terms, service level commitments or data processing terms.

1.7 In the event of any inconsistency, the following order of precedence shall apply, unless expressly agreed otherwise:

a. a signed master agreement or other signed contract;
b. the applicable quotation, order confirmation, statement of work or order form;
c. product-specific terms;
d. applicable schedules, support terms, SLA or data processing agreement;
e. these Terms.

1.8 Any purchase conditions, procurement terms, general terms or other standard terms of the Customer shall not apply, even if referenced in the Customer's order, purchase order, vendor portal or other communication, unless expressly accepted by DataVision in writing.

1.9 These Terms govern supplies made by DataVision s.r.o., whether performed directly or through any of its branch offices or other establishments, including its Italian branch referred to in the introductory provisions above, unless expressly agreed otherwise in the applicable contractual documentation.

2. Definitions

For the purposes of these Terms:

2.1 "**Acceptance**" means acceptance of Deliverables, Services, Software, Systems or other performance in accordance with Article 8.

2.2 "**Customer Data**" means any data, content, materials, records, documents, images, information or other inputs provided, submitted, uploaded, made available or otherwise processed by or on behalf of the Customer in connection with the Products or Services.

2.3 "**Deliverables**" means any agreed outputs to be provided by DataVision to the Customer under a Project, Statement of Work or other agreed scope, excluding Background IP unless expressly stated otherwise.

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2.4 "**Documentation**" means the standard user, technical, operational or descriptive documentation made available by DataVision for the relevant Product or Service.

2.5 "**Products**" means any hardware, equipment, devices, assemblies, components or other tangible items supplied by DataVision.

2.6 "**Professional Services**" means implementation, installation, configuration, integration, commissioning, consulting, training, support, maintenance, development or other services provided by DataVision.

2.7 "**Project**" means any agreed implementation, development, customization, delivery, proof of concept, pilot or similar engagement.

2.8 "**SaaS Services**" means any software-as-a-service, cloud, hosted, subscription-based, API-based or remotely accessible service made available by DataVision.

2.9 "**Services**" means any Professional Services and/or SaaS Services supplied by DataVision.

2.10 "**Software**" means any software, application, platform, code, model, algorithm, interface, script, library, tool, workflow or similar digital component supplied, licensed or made available by DataVision, whether on-premises, embedded, downloadable, hosted or cloud-based.

2.11 "**Statement of Work**" or "**SOW**" means a written project document, quotation appendix or other scope document describing specific Deliverables, milestones, assumptions, pricing or timelines.

2.12 "**Subscription Term**" means the period during which the Customer is authorized to use the relevant SaaS Service or subscription-based Software.

2.13 "**System**" means an integrated solution consisting of hardware, software, components, modules, documentation and/or services delivered by DataVision.

2.14 "**Third-Party Components**" means any third-party software, hardware, tools, libraries, hosting services, open-source software or other components not owned by DataVision.

3. Quotations, Orders and Contract Formation

3.1 Unless expressly stated otherwise, all quotations, offers, proposals and pricing indications issued by DataVision are non-binding and may be withdrawn, amended or revised by DataVision at any time before the contract is formed.

3.2 Unless otherwise stated in the quotation, a quotation issued by DataVision is valid for sixty (60) days from its issue date.

3.3 A contract is formed only when:

a. DataVision issues a written order confirmation; or
b. both parties sign a contract, SOW or order form; or
c. DataVision commences performance after receiving a Customer order and such commencement reasonably evidences DataVision's acceptance.

3.4 DataVision may reject any order at its discretion.

3.5 DataVision may require prepayment, credit approval, guarantees or other security before accepting or performing an order.

3.6 Any modifications requested by the Customer after contract formation shall be subject to DataVision's written approval and may result in revised fees, timelines, dependencies and scope.

4. Scope of Supply

4.1 The specific scope of Products, Software, Services, Deliverables, functionality, quantities, technical parameters, assumptions, exclusions, implementation responsibilities and commercial conditions shall be as set out in the applicable quotation, order confirmation, SOW, order form or other document issued or accepted by DataVision.

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4.2 Unless expressly included in the agreed scope, the following are excluded:

a. custom development;
b. on-site installation or travel;
c. data migration;
d. integrations with third-party systems;
e. acceptance testing beyond standard procedures;
f. training;
g. maintenance, support or updates beyond the agreed warranty or support scope;
h. any compliance, validation or certification obligations; and
i. any deliverables, outputs or environments not expressly specified.

4.3 DataVision may engage subcontractors for performance of any part of the scope. DataVision remains responsible for its subcontractors to the extent required by applicable law.

4.4 Any timelines, implementation plans or delivery schedules depend on the Customer's timely cooperation, approvals, access, data, environments, technical inputs and other dependencies.

5. Customer Cooperation and Responsibilities

5.1 The Customer shall provide all cooperation reasonably required for DataVision's performance, including timely decisions, approvals, information, access rights, personnel availability, infrastructure, test environments, data and other inputs.

5.2 If the Customer fails to provide required cooperation, approvals, access, information, data, environments or other dependencies in a timely manner, DataVision shall not be responsible for any resulting delay, non-performance or inefficiency. In such case, DataVision shall be entitled to extend the applicable delivery dates, milestones and implementation schedule accordingly and to charge the Customer for any reasonable additional costs, wasted time, standby time, reallocation, remobilization or rescheduling caused by such failure.

5.3 The Customer is responsible for the accuracy, completeness, legality and suitability of all Customer Data and other materials provided to DataVision.

5.4 The Customer shall ensure that it has all necessary rights, permissions, notices, consents and legal bases required to provide Customer Data and other materials to DataVision and to permit their use for performance of the contract.

5.5 The Customer shall use the Products and Services only:

a. in accordance with applicable law;
b. in accordance with the Documentation and DataVision's instructions; and
c. within the agreed scope, restrictions and permitted use cases.

5.6 The Customer shall not, and shall not permit any third party to:

a. use the Products or Services in violation of law, export controls or sanctions;
b. misuse, interfere with or disrupt the Services or related infrastructure;
c. bypass, disable or undermine security or technical restrictions;
d. reverse engineer, decompile, disassemble or attempt to derive source code or underlying structure, except to the extent such restriction is prohibited by mandatory law;
e. use the Products or Services to build, benchmark or support a competing product or service, unless expressly permitted by DataVision in writing; or
f. upload, submit or process unlawful, infringing, malicious or harmful content.

5.7 The Customer remains responsible for its own business decisions, operational use, internal controls, legal compliance and human review of any outputs, recommendations, analyses or results generated or supported by Software or Services supplied by DataVision.

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6. Delivery, Access and Performance

6.1 Delivery terms for tangible Products shall be stated in the applicable quotation, order confirmation or contract. Unless otherwise expressly agreed, delivery of Products shall be **EXW Incoterms® 2020** at the place designated by DataVision.

6.2 For Software delivered electronically, delivery shall be deemed completed when the Software is made available for download, installation, activation or remote access by the Customer.

6.3 For SaaS Services, delivery shall be deemed completed when DataVision provides the Customer with access credentials, tenant access, API access or other agreed means of access.

6.4 DataVision may perform in partial deliveries, partial releases, milestones or phases and may invoice such partial performance separately if agreed or reasonably justified by the delivery model.

6.5 Delivery dates and implementation timelines are estimates unless expressly stated as binding. Any timeline shall be extended to the extent DataVision is delayed or impeded by the Customer's failure to provide required cooperation, decisions, approvals, access, data, materials, environments or other dependencies.

6.6 If the Customer fails to provide necessary cooperation for more than a reasonable period, DataVision may suspend performance until such cooperation is provided. Any resulting remobilization, re-planning, storage, standby or re-scheduling costs may be charged to the Customer.

7. Changes and Change Requests

7.1 Any request by the Customer to modify scope, specifications, Deliverables, interfaces, dependencies, timeline, assumptions, acceptance criteria or implementation method shall constitute a change request.

7.2 DataVision shall not be obliged to implement any change request unless agreed in writing.

7.3 DataVision may evaluate the impact of a change request on fees, schedule, technical design, responsibilities, resourcing and risk allocation.

7.4 Unless otherwise agreed, change requests shall be billed on a time and materials basis at DataVision's then-current rates.

8. Acceptance

8.1 Unless otherwise agreed, Products, Software, Deliverables and Services shall be deemed accepted upon the earliest of:

a. signature of an acceptance protocol;
b. productive use by the Customer;
c. go-live or deployment into operational use;
d. expiry of the applicable review period without a justified rejection notice; or
e. where formal acceptance is not applicable, delivery or access being made available in accordance with the contract.

8.2 For Projects with agreed acceptance testing, the Customer shall review the relevant Deliverables without undue delay and notify DataVision in writing of any material non-conformities within ten (10) business days from delivery or completion, unless another period is agreed.

8.3 A rejection notice must:
(a) be in writing;
(b) specify the alleged non-conformities in reasonable detail; and
(c) demonstrate that the alleged non-conformity constitutes a material deviation from the agreed specification.

8.4 Minor defects, cosmetic issues, non-material deviations or defects not preventing intended use shall not justify rejection.

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8.5 If the Customer does not validly reject the Deliverables within the review period, Acceptance shall be deemed to have occurred.

8.6 If DataVision remedies a validly notified material defect, the Customer shall promptly re-test the corrected item, and the same acceptance procedure shall apply only to the corrected part.

8.7 For SaaS Services and standard Software, unless a formal acceptance procedure is expressly agreed, the relevant Services and Software are deemed accepted upon provisioning of access or first productive use.

8.8 For installation, commissioning or hardware-based projects, a separate FAT, SAT, commissioning protocol or acceptance procedure may be agreed in the quotation or SOW.

9. Fees, Expenses, Invoicing and Payment

9.1 The Customer shall pay all fees stated in the applicable quotation, order confirmation, SOW, order form or contract.

9.2 Unless otherwise stated, all prices are exclusive of VAT and any other taxes, customs duties, withholding taxes, bank charges, packaging, freight, insurance, travel expenses, accommodation costs and other out-of-pocket costs.

9.3 All payments shall be made in the currency stated in the applicable quotation, order confirmation, invoice or other contractual document. Any bank charges, transfer fees, conversion costs or similar charges shall be borne by the Customer.

9.4 If the parties agree that an advance payment shall be secured by a bank guarantee, standby letter of credit or similar instrument, such instrument shall be subject to DataVision's prior written approval, including its issuer, wording, amount, validity and release mechanism. Unless expressly agreed otherwise in writing, all costs, fees and expenses related to such instrument shall be borne by the Customer.

9.5 Any delivery or performance timeline dependent on the advance payment shall commence only upon receipt of the agreed advance payment and, where applicable, issuance of the agreed security instrument in a form acceptable to DataVision.

9.6 Any taxes or public charges arising in connection with the supply, except taxes based on DataVision's net income, shall be borne by the Customer.

9.7 Unless otherwise agreed:

a. one-off fees for Products, licences or Deliverables may be invoiced upon order confirmation, shipment, delivery, milestone completion or Acceptance;
b. recurring subscription fees shall be invoiced in advance;
c. time and materials services shall be invoiced monthly based on work performed;
d. reasonable travel and out-of-pocket expenses shall be invoiced separately.

9.8 Payment is due within **thirty (30) days** from the invoice date, unless otherwise stated in the relevant commercial document.

9.9 The Customer is not entitled to withhold, defer, set off or reduce any payment due to any claim, complaint, counterclaim or alleged defect, except where mandatory law provides otherwise.

9.10 In the event of late payment, DataVision shall be entitled to:

a. statutory default interest under applicable Czech law;
b. reimbursement of costs of collection;
c. suspension of deliveries, Services, support or access;
d. acceleration of outstanding amounts; and/or
e. require advance payment or additional security for further performance.

9.11 If DataVision reasonably believes that the Customer's financial situation has deteriorated or that the Customer may fail to pay, DataVision may require prepayment, adequate security or revised payment terms as a condition for continued performance.

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9.12 Claims regarding invoices must be raised in writing without undue delay and no later than eight (8) days from receipt of the invoice. Failure to do so shall not automatically extinguish mandatory rights of the Customer, but undisputed amounts shall remain payable when due.

9.13 DataVision shall be entitled to adjust any recurring fees, maintenance fees, support fees, subscription fees and other regularly recurring charges once per calendar year in line with the annual percentage increase of the Consumer Price Index (CPI) published by the Czech Statistical Office for the preceding calendar year. DataVision shall notify the Customer of such adjustment at least sixty (60) days in advance, and the adjusted fees shall apply from the next renewal period or other subsequent billing period specified in such notice.

10. Subscription Terms for SaaS and Recurring Software Services

10.1 Where DataVision provides SaaS Services, hosted software, subscription-based software, cloud services, platform access, API services or other remotely provided software services, such services shall be governed by these Terms **together with** the applicable product-specific terms, subscription terms, SaaS terms, service descriptions, support terms, service level commitments and/or order documentation issued by DataVision for the relevant service.

10.2 In the event of any inconsistency between these Terms and the product-specific terms or other service-specific terms applicable to the relevant SaaS or subscription service, the **service-specific terms shall prevail** with respect to that service.

10.3 Unless expressly stated otherwise in the applicable service-specific terms, SaaS Services are provided on a subscription basis for the agreed subscription term and solely for the Customer's internal business purposes.

10.4 The Customer acknowledges that access to and use of SaaS Services may be subject to additional operational, technical, security, acceptable use, support, maintenance, data processing, availability and billing provisions set out in the applicable service-specific terms.

10.5 For the avoidance of doubt, product-specific platforms and services designated by DataVision as subject to separate online terms, platform terms, subscription terms or service-specific conditions shall be governed by such separate terms in addition to these Terms.

11. Intellectual Property Rights

11.1 All intellectual property rights, title and interest in and to DataVision's Products, Software, SaaS Services, Documentation, tools, templates, models, algorithms, libraries, workflows, know-how, interfaces, generic methods, development practices, reusable modules, scripts, design patterns, inventions, improvements and other materials owned, developed or used by DataVision independently of the specific Customer project ("**Background IP**") shall remain vested in DataVision or its licensors.

11.2 Unless expressly agreed otherwise in writing, no ownership rights in any intellectual property are transferred to the Customer.

11.3 To the extent Deliverables are specifically created for the Customer under a Project, and subject to full payment of all applicable fees, DataVision grants the Customer a non-exclusive, non-transferable, non-sublicensable licence to use such Deliverables for the Customer's internal business purposes, unless a different licence scope is expressly agreed.

11.4 Even where Deliverables are customized for the Customer, DataVision retains all rights in:

a. Background IP;
b. general know-how, methods, concepts, processes and skills;
c. reusable modules, utilities, connectors, routines and templates;
d. generic improvements and learnings;
e. pre-existing materials; and

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f. Third-Party Components and open-source software.

11.5 If the parties expressly agree in writing that specific ownership rights in bespoke Deliverables shall pass to the Customer, such transfer shall:

a. apply only to the expressly identified bespoke Deliverables
b. take effect only upon full payment of all related fees; and
c. exclude all Background IP and all items listed in Article 11.4.

11.6 The Customer shall comply with all licence conditions applicable to Third-Party Components. To the extent Third-Party Components are supplied, the Customer acknowledges that they may be subject to separate licence terms of the relevant third party.

11.7 Open-source software may be included in Software or Deliverables. Where required by the applicable open-source licence, use of such components shall be governed by the relevant open-source licence terms.

11.8 Unless expressly agreed otherwise, the Customer shall not remove, obscure or alter proprietary notices, trademarks, copyright notices or other rights notices contained in the Products, Software, Services or Documentation.

11.9 Subject to the Customer's prior written objection, DataVision may identify the Customer by name and logo as a customer reference in a reasonable manner for marketing and reference purposes, provided no confidential information is disclosed.

12. Customer Data and Data Protection

12.1 As between the parties, the Customer retains all rights, title and interest in and to Customer Data.

12.2 The Customer grants DataVision a non-exclusive right to host, copy, process, transmit, store, adapt and otherwise use Customer Data solely to the extent necessary to perform the contract, provide the Services, maintain security, prevent abuse, comply with law and exercise DataVision's rights under the contract.

12.3 The Customer represents and warrants that:

a. it has all necessary rights and legal bases to provide Customer Data to DataVision;
b. Customer Data and its intended processing do not violate law or third-party rights; and
c. it has provided all notices and obtained all consents required by applicable law.

12.4 To the extent DataVision processes personal data on behalf of the Customer as processor, the parties shall enter into a separate data processing agreement where required by applicable law.

12.5 DataVision shall implement commercially reasonable technical and organizational measures appropriate to the nature of the Services and the risks involved.

12.6 Unless expressly agreed otherwise, the Customer is responsible for:

a. etermining whether the Services are suitable for processing regulated, special-category, classified, export-controlled or other sensitive data;
b. configuring its own retention settings, access rights and internal workflows; and
c. maintaining its own backups of Customer Data where appropriate.

12.7 Unless prohibited by law or agreed otherwise, DataVision may use aggregated and fully anonymized technical, operational and statistical data derived from use of the Services for analytics, security, service improvement, benchmarking and business operations, provided such data does not identify the Customer or any individual.

13. Warranties

13.1 DataVision warrants that it will perform Services with reasonable professional skill and care customary in the relevant industry.

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13.2 DataVision warrants that, for the applicable warranty period expressly agreed in the quotation, order confirmation, contract or Documentation:

a. Products shall substantially conform to their agreed specifications under normal and proper use;
b. custom Software Deliverables shall substantially conform to the agreed functional specification; and
c. SaaS Services shall materially perform in accordance with the applicable Documentation.

13.3 Unless otherwise agreed:

a. the warranty period for hardware-based Products and Systems is twelve (12) months from delivery or Acceptance, whichever occurs first;
b. the warranty period for custom Software Deliverables is ninety (90) days from Acceptance;
c. SaaS Services are warranted only during the applicable Subscription Term and only to the extent expressly stated in these Terms or the applicable service-specific terms.

13.4 To the extent the Products, Systems, Deliverables or Services include hardware, software or other components supplied by third parties ("Third-Party Components"), such Third-Party Components shall be subject only to the warranty, if any, provided by the relevant third-party manufacturer, vendor or licensor. DataVision does not provide any separate or additional warranty for Third-Party Components beyond the warranty rights that DataVision is entitled to pass through to the Customer, except to the extent a defect results from DataVision's improper integration, installation, configuration or handling of such Third-Party Components.

13.5 As DataVision's sole obligation and the Customer's sole remedy for a valid warranty claim, DataVision may, at its option:

a. repair or replace the affected Product;
b. re-perform the affected Services;
c. correct or provide a workaround for the affected Software or SaaS defect; or
d. if the foregoing is not commercially reasonable, provide a pro rata credit or refund for the affected part.

13.6 Unless expressly agreed otherwise in the applicable quotation, SOW, order confirmation or support agreement, warranty services for systems installed outside the Czech Republic or at remote locations shall be provided primarily by remote diagnostics, remote support, repair, replacement, shipment of replacement parts, return-to-base service or other reasonable corrective measures determined by DataVision.

13.7 Unless expressly agreed otherwise in writing, warranty does not include on-site intervention at the Customer's site. Any on-site intervention, travel time, travel expenses, accommodation, local transport, shipping, insurance, customs duties, taxes, assembly, disassembly and other costs related to servicing the system at the installation site shall be borne by the Customer.

13.8 The Customer shall provide all reasonable cooperation required for warranty diagnostics and remediation, including remote access, technical information, logs, images, test results and, where reasonably requested by DataVision, basic diagnostic, removal, replacement, reinstallation, restart or similar activities at the installation site under DataVision's remote guidance.

13.9 For valid warranty claims relating to Third-Party Components, DataVision may, at its option, assign, pass through or reasonably assist the Customer in exercising the applicable warranty rights against the relevant third-party manufacturer, vendor or licensor.

13.10 Warranty claims must be notified in writing without undue delay after the relevant defect is discovered and, in any event, within the applicable warranty period.

13.11 The warranties above do not apply to defects or issues caused by:

a. misuse, negligence, abnormal conditions or use contrary to instructions;
b. unauthorized modifications by the Customer or third parties;
c. Customer systems, infrastructure, data, environments or third-party products;

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d. Customer-specified designs, assumptions or materials;
e. beta, prototype, pilot or evaluation versions;
f. ordinary wear and tear of hardware components; or
g. circumstances outside DataVision's reasonable control.

13.12 Except as expressly stated in these Terms or in a written agreement, all Products and Services are provided without any other warranties, express or implied, including implied warranties of merchantability, fitness for a particular purpose, non-infringement, uninterrupted availability or error-free operation, to the maximum extent permitted by law.

14. Support and Maintenance

14.1 Unless expressly included in the agreed scope or purchased under a separate support arrangement, DataVision is not obliged to provide maintenance, support, monitoring, updates, upgrades, on-site interventions or service levels beyond the warranty remedies in Article 13.

14.2 Support services, response times, maintenance windows, update policies and service levels, if any, shall be governed by the applicable support agreement, support plan, SLA or product-specific terms.

14.3 DataVision may install patches, fixes, updates and security measures necessary for operation, compliance, security or supportability of the Services.

14.4 Unless expressly agreed otherwise in a separate support agreement, SLA or quotation, DataVision shall provide support and maintenance primarily on a remote basis. Any on-site support, intervention or attendance at the Customer's site shall be subject to separate agreement, personnel availability and additional fees at DataVision's then-current rates.

14.5 Unless expressly agreed otherwise, DataVision is not obliged to maintain local spare parts stock, provide local field service personnel, or ensure any specific on-site response time outside the Czech Republic. Any logistics, export/import handling, customs clearance, local access arrangements or site-specific service coordination shall be the Customer's responsibility.

15. Confidentiality

15.1 Each party shall keep confidential all non-public commercial, legal, technical, financial and business information disclosed by the other party in connection with the contract and marked as confidential or which should reasonably be understood to be confidential by its nature ("**Confidential Information**").

15.2 Confidential Information includes, without limitation, pricing, quotations, product roadmaps, source materials, business plans, know-how, Software, technical architecture, customer data, trade secrets and project documentation.

15.3 The receiving party shall:

a. use Confidential Information only for the purposes of performing or exercising rights under the contract;
b. protect it with at least reasonable care; and
c. disclose it only to those employees, affiliates, contractors, advisers or subcontractors who have a need to know and are bound by confidentiality obligations.

15.4 The obligations in this Article do not apply to information that the receiving party can demonstrate:

a. is or becomes public without breach of the contract;
b. was lawfully known to it before disclosure;
c. was lawfully obtained from a third party without confidentiality obligation; or
d. was independently developed without use of the disclosing party's Confidential Information.

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15.5 A receiving party may disclose Confidential Information if required by law, court order or regulatory authority, provided that, where legally permitted, it informs the disclosing party in advance and limits the disclosure to the extent legally required.

15.6 If the parties have entered into a separate non-disclosure agreement, confidentiality agreement or similar agreement governing the protection of confidential information ("NDA"), such NDA shall apply in parallel with these Terms. In the event of any conflict between the NDA and this Article 15, the NDA shall prevail to the extent of such conflict, unless expressly agreed otherwise.

15.7 This Article shall survive termination of the contract for five (5) years, and for trade secrets as long as they remain protected as trade secrets under applicable law.

16. Suspension, Termination and Effects of Termination

16.1 DataVision may suspend performance, deliveries, access or support, in whole or in part, if:

a. the Customer is in material breach of the contract;
b. payment is overdue;
c. the Customer fails to provide required cooperation;
d. continuation would create material legal, regulatory or security risk; or
e. DataVision is entitled to suspend under another provision of these Terms.

16.2 Either party may terminate the contract for material breach if the other party fails to cure such breach within thirty (30) days after receiving written notice, unless the breach is incapable of cure or immediate termination is justified by law or by the nature of the breach.

16.3 DataVision may terminate with immediate effect if:

a. the Customer repeatedly delays payment;
b. the Customer becomes insolvent, enters liquidation or insolvency proceedings, or there is justified concern regarding its solvency;
c. the Customer infringes DataVision's intellectual property rights; or
d. the Customer uses the Products or Services unlawfully or in a manner exposing DataVision to material risk.

16.4 Upon termination or expiry:

a. all outstanding fees become immediately due to the extent permitted by law;
b. the Customer shall cease use of Software and SaaS Services, except to the extent continued use is expressly permitted;
c. each party shall return or destroy the other party's Confidential Information upon request, unless retention is required by law or legitimate archiving policy;
d. DataVision may delete Customer Data in accordance with its retention rules and product terms, unless otherwise agreed; and
e. provisions intended by their nature to survive shall remain in effect.

16.5 Termination does not affect any rights or remedies accrued before the effective date of termination.

17. Limitation of Liability

17.1 To the maximum extent permitted by applicable law, DataVision's aggregate liability arising out of or in connection with the contract, regardless of the legal basis of the claim, shall not exceed:

a. in the case of one-off deliveries, projects or services, the total fees actually paid or payable by the Customer to DataVision under the relevant quotation, order confirmation, SOW, order form or contract; and

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b. in the case of recurring or subscription-based services, the fees actually paid by the Customer to DataVision for the affected Products or Services during the twelve (12) months preceding the event giving rise to the claim.

17.2 To the maximum extent permitted by applicable law, DataVision shall not be liable for any indirect, incidental, special, punitive or consequential damages, or for any loss of profit, loss of revenue, loss of production, loss of business, loss of business opportunity, loss of goodwill, loss of anticipated savings, downtime costs, or loss, corruption or unavailability of data, whether arising from delay, defect, failure, reduced performance, interruption, suspension, unavailability of the Products, Systems, Software or Services, or otherwise.

17.3 Unless expressly agreed otherwise in a separate SLA, support agreement or other written contractual document, DataVision does not assume any liability for production stoppages, operational interruptions or other commercial or business losses resulting from any defect, malfunction, downtime, reduced performance or unavailability of the Products, Systems, Software or Services.

17.4 Where specific service levels, response times, availability commitments, support commitments, contractual penalties, service credits or other remedies are expressly agreed in a separate SLA, support agreement or other written contractual document, only the remedies expressly set out therein shall apply to the relevant failure, and such remedies shall be the Customer's sole and exclusive remedies in respect of that failure.

17.5 DataVision shall not be liable for any loss or damage resulting from:

a. use of the Products, Systems, Software or Services contrary to the Documentation, instructions or agreed purpose;
b. Customer Data, third-party data or other materials provided by or on behalf of the Customer;
c. third-party components, third-party services, internet connectivity, cloud or hosting infrastructure not controlled by DataVision;
d. unauthorized modifications, interventions or repairs made by the Customer or third parties;
e. the Customer's failure to provide required cooperation, access, approvals, information, data or suitable operating conditions; or
f. the Customer's failure to implement reasonable backup, security, control or contingency measures, unless DataVision has expressly agreed in writing to be responsible for such measures.

17.6 The limitations and exclusions of liability in this Article 17 apply regardless of the legal theory of the claim, whether in contract, tort, statutory liability, indemnity or otherwise, and even if DataVision has been advised of the possibility of such damages.

17.7 Nothing in these Terms excludes or limits liability to the extent such exclusion or limitation is prohibited by mandatory law, including liability for wilful misconduct, gross negligence, death or personal injury, or other non-excludable claims.

18. Force Majeure

18.1 Neither party shall be liable for failure or delay in performance to the extent caused by circumstances beyond its reasonable control, including natural disasters, fire, flood, war, civil unrest, terrorism, labour disputes, epidemics, pandemics, governmental measures, sanctions, export restrictions, energy shortages, cyber incidents of general impact, supply chain disruption, transport failures, or unavailability of essential third-party services.

18.2 The affected party shall notify the other party without undue delay and shall use reasonable efforts to mitigate the impact.

18.3 If a force majeure event continues for more than ninety (90) days and materially prevents performance, either party may terminate the affected part of the contract by written notice.

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19. Export Control and Sanctions

19.1 The Customer shall comply with all applicable export control, sanctions, foreign trade and re-export laws and regulations of the Czech Republic, the European Union and any other applicable jurisdiction.

19.2 The Customer shall not directly or indirectly export, re-export, transfer, make available or use any Products, Software, Services or technical information supplied by DataVision in violation of applicable export control or sanctions laws.

19.3 The Customer shall provide all end-use, end-user and destination information reasonably requested by DataVision for compliance purposes.

19.4 DataVision shall not be liable for any delay, non-delivery or additional costs resulting from export control restrictions, sanctions, licensing requirements, customs procedures or the Customer's failure to provide accurate, complete and timely compliance information.

19.5 DataVision may suspend or terminate performance without liability if performance would violate export control, sanctions or foreign trade laws, or if the necessary authorization cannot be obtained.

20. Compliance and Acceptable Use

20.1 The Customer shall not use the Products or Services for unlawful, discriminatory, harmful, deceptive, abusive or prohibited purposes.

20.2 Where the Products or Services involve data analysis, AI-supported functions, image processing, decision support, automation or generated outputs, the Customer remains responsible for legal compliance, human oversight, sector-specific compliance and appropriate use of results in its business processes.

20.3 The Customer acknowledges that certain Software, models, analytics or automated outputs may be probabilistic, assistive or dependent on the quality and completeness of input data and are not a substitute for professional judgment unless expressly agreed otherwise.

21. Notices and Communications

21.1 Any legal notice under the contract shall be made in writing and delivered by hand, courier, registered mail or e-mail to the contact details specified in the applicable contract documents or, if none are specified, to the registered office or general contact address of the relevant party.

21.2 Routine operational communication may be made by e-mail or through agreed project and service communication channels.

22. Governing Law and Dispute Resolution

22.1 These Terms and any non-contractual obligations arising out of or in connection with them shall be governed by the laws of the Czech Republic, excluding conflict of law rules and excluding the United Nations Convention on Contracts for the International Sale of Goods (CISG).

22.2 The courts of the Czech Republic shall have exclusive jurisdiction over any dispute arising out of or in connection with these Terms or the relevant contract, unless mandatory law requires otherwise. The locally competent court shall be the court having jurisdiction according to DataVision's registered office, unless applicable law provides otherwise.

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23. Final Provisions

23.1 If any provision of these Terms is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

23.2 A failure or delay by either party to enforce any right shall not constitute a waiver of that right.

23.3 The Customer may not assign or transfer the contract, in whole or in part, without DataVision's prior written consent. DataVision may assign the contract to an affiliate or as part of a transfer of business, reorganization or sale of the relevant business line.

23.4 Amendments to the contract must be made in writing, unless a less formal change mechanism is expressly agreed for operational or project matters.

23.5 These Terms form an integral part of each contract to which they apply.

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